

1964 No. 6

A MEASURE passed by the National Assembly of the Church of England to amend the law relating to the qualifications for Holy Orders and to the Form and Manner of Making, Ordaining and Consecrating Bishops, Priests and Deacons; and to amend the law relating to the revocation of licences granted to Ministers and to the occupations of Ministers. [10th June 1964]

PART I

ORDINATION

Qualifications
for office of
Deacon.

1.—(1) No Bishop shall admit any person into Holy Orders except such person on careful and diligent examination, wherein the Bishop shall have called to his assistance the Archdeacons and other Ministers appointed for this purpose, be found to possess a sufficient knowledge of Holy Scripture, of the doctrine, discipline and worship of the Church of England as set forth in the Thirty-Nine Articles of Religion, the Book of Common Prayer and the Ordinal, and fulfils the requirement as to learning and other qualities which, subject to any directions given by the Convocation of the Province, the Bishop deems necessary for the office of Deacon.

(2) Section four of the Ordination of Ministers Act 1571, is hereby repealed.

Ordination to
priesthood in
24th year
of age.

2. It shall be lawful for the Archbishop of Canterbury to grant a Faculty to a person over the age of twenty-three years to be admitted a Priest in any Diocese in either Province and to preach and administer the Sacraments although such person has not attained the full age of twenty-four years, and accordingly in section one of the Clergy Ordination Act 1804, after the words "four and twenty years compleat" there shall be inserted the words "unless being over the age of twenty-three years he hath a Faculty from the Archbishop of Canterbury".

Amendment
of Preface to
Ordinal in Book
of Common
Prayer.

3. The following two paragraphs shall be substituted for the last two paragraphs in the Preface to the Form and Manner of Making, Ordaining, and Consecrating of Bishops, Priests and

Deacons according to the Order of the Church of England contained in the Book of Common Prayer, that is to say:—

“And none shall be admitted a Deacon, except he be full twenty-three years of age unless he have a Faculty. And every man which is to be admitted a Priest shall be full twenty-four years of age, unless being over twenty-three years of age he have a Faculty. And every man which is to be ordained or consecrated Bishop shall be full thirty years of age.

And the Bishop, knowing either by himself or by sufficient testimony any person to be a person of virtuous conversation and without crime, and after examination and trial finding him to possess the qualifications required by law and sufficiently instructed in Holy Scripture may on the Sundays immediately following the Ember Weeks or on the Feast of Saint Michael and All Angels or of Saint Thomas the Apostle, or on such other days as shall be provided by canon, in the face of the Church, admit him a Deacon in such manner and form as hereafter followeth.”

4.—(1) The following rubric shall be substituted for the second rubric at the beginning of the Form and Manner of Making of Deacons in the Book of Common Prayer, that is to say:—

Amendments
of rubrics in
Ordering of
Deacons in
Book of
Common
Prayer.

“First the Archdeacon, or his deputy, or such other persons as by ancient custom have the right so to do, shall present unto the Bishop (sitting in his chair near to the Holy Table) such as desire to be ordained Deacons (each of them being decently habited), saying these words.”

(2) The following rubric shall be substituted for the last rubric at the end of the Form and Manner of Making of Deacons aforesaid, that is to say:—

“And here it must be declared unto the Deacon, that he must continue in that office of a Deacon the space of a whole year (except for reasonable causes which shall otherwise seem good unto the Bishop) to the intent that he may be perfect and well expert in the things appertaining to the Ecclesiastical Administration. In executing whereof if he be found faithful and diligent, he may be admitted by his Diocesan to the Order of Priesthood on the Sundays immediately following the Ember Weeks or on the Feast of Saint Michael and All Angels or of Saint Thomas the Apostle, or on such other days as shall be provided by canon, in the face of the Church, in such manner and form as hereafter followeth.”

Amendment
of rubric in
Ordering of
Priests in
Book of
Common
Prayer.

5. The following rubric shall be substituted for the second rubric at the beginning of the Form and Manner of Ordering of Priests in the Book of Common Prayer, that is to say:—

“First, the Archdeacon, or, in his absence, one appointed in his stead, or such other person as by ancient custom have the right so to do, shall present unto the Bishop (sitting in his chair near to the Holy Table) all them that shall receive the Order of Priesthood that day (each of them being decently habited) and say.”

Days for
consecration
of Bishops.

6. Notwithstanding the provision contained in the Headnote to the Form of Ordaining or Consecration of an Archbishop or Bishop in the Book of Common Prayer that such ordaining or consecrating is always to be performed upon some Sunday or Holy-day, it shall be lawful in the case of each Province for the Archbishop, or the Bishop appointed to act in his stead, for weighty and urgent reasons, to appoint a day, other than a Sunday or Holy-day, for the ordaining or consecrating of an Archbishop or Bishop, and accordingly the following words shall be added at the end of the said Headnote, that is to say:—

“unless for weighty and urgent reasons some other day be appointed.”

Ordination
of aliens.

7. The power exercisable under section one of the Ordination of Aliens Act 1784, by the Bishop of London, or any other Bishop appointed by him, to admit to the Order of Deacon or Priest persons, subjects or citizens of countries outside Her Majesty's Dominions for service in those countries without being required to take the Oath of Allegiance shall also be exercisable by either Archbishop or by any Bishop appointed by either of them for the purpose.

Illegitimacy
no impediment
to orders.

8. No person shall be refused ordination as deacon or priest or consecration as bishop on the ground that he was born out of lawful wedlock.

Certain
impediments
to order.

9.—(1) No person shall be admitted into Holy Orders who has re-married and, the wife of that marriage being living, has a former wife still living.

(2) No person shall be admitted into Holy Orders who is married to a person who has been previously married and whose former husband is still living.

PART II

MISCELLANEOUS PROVISIONS

Revocation
of Minister's
Licence.

10.—(1) The Bishop of a Diocese may revoke summarily and without further process any licence granted to any Minister within his Diocese for any cause which shall appear to him

to be good and reasonable after having given to such Minister sufficient opportunity of showing cause to the contrary, and in such case the Bishop shall serve upon the Minister a notice of revocation.

(2) A Minister upon whom such a notice of revocation shall have been served may within one month after the service thereof appeal to the Archbishop of the Province who shall confirm or annul such revocation as shall appear to him good and proper and whose decision shall be final.

11.—(1) Notwithstanding the provisions of sections twenty-eight to thirty-one of the Pluralities Act 1838, and section one of the Trading Partnerships Act 1841, it shall be lawful for any Minister holding any Preferment or Benefice or any Curacy or Lectureship or who shall be licensed or otherwise allowed to perform the duties of any ecclesiastical office whatever to engage in trades or occupations other than the trades and occupations authorised by the said sections and without the restrictions imposed thereby, provided that he holds a licence so to do from the Bishop of the Diocese in which he holds office, which the said Bishop may grant subject to the provisions of sub-section (2) of this section. Occupations of Ministers.

(2) The Bishop may grant such a licence as is mentioned in the foregoing sub-section only after consultation with the Parochial Church Council of the Parish, if any, in which such Minister holds or is about to hold office, or may refuse such licence only after consultation with the said Council, if any, and with the Ministerial Committee of the Diocese constituted under the provisions of the Incumbents (Disability) Measure 1945:

Provided always that if the Bishop of the Diocese shall refuse such a licence, the Minister may within one month after such refusal appeal to the Archbishop of the Province who shall confirm or overrule such refusal as shall appear to him good and proper and whose decision shall be final.

PART III

GENERAL

12. During a vacancy of the see of a bishop:—

- (a) any reference to the bishop in sub-section (2) of section four, in sub-section (1) of section ten or in section eleven of this Measure shall be deemed to be a reference to the archbishop of the province in which the diocese of the bishop is situate; and
- (b) sub-section (2) of section ten and the proviso to sub-section (2) of section eleven of this Measure shall not apply.

Provisions
during vacancy
of a See.

Extent.

13. This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man:

Provided that:—

(a) this Measure may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measures 1931 and 1957, or either of them, in accordance with those Measures; and

(b) if an Act of Tynwald so provides, this Measure shall extend to the Isle of Man subject to such modifications, if any, as may be specified in such Act of Tynwald.

Short title.

14. This Measure may be cited as the Clergy (Ordination and Miscellaneous Provisions) Measure 1964.

Table of Enactments referred to in this Measure

Short Title	Session and Chapter
Ordination of Ministers Act 1571	13 Eliz. 1. c. 12.
Ordination of Aliens Act 1784	24 Geo. 3. Sess. 2. c. 35.
Clergy Ordination Act 1804	44 Geo. 3. c. 43.
Pluralities Act 1838	1 & 2 Vict. c. 106.
Trading Partnerships Act 1841	4 & 5 Vict. c. 14.
Channel Islands (Church Legislation) Measure 1931	21 & 22 Geo. 5. No. 4.
Incumbents (Disability) Measure 1945	8 & 9 Geo. 6. No. 3.
Channel Islands (Church Legislation) Measure 1931 (Amendment) Measure 1957	5 & 6 Eliz. 2. No. 1.